



MEMORANDUM OF UNDERSTANDING

(Trainer Sourcing and Coordination Arrangement - Revised ACA-Protective Draft)

This Memorandum of Understanding ("MoU") is made on this **2026-07-16** at Chennai, Tamil Nadu.

First Party	Sanjay, having its office at Edina 702 usenvsnv wj8gu9wenguwn wunfuwfunwn ujfuedugner, represented by its authorised signatory Anil ("ABCDE").
Second Party	ACA Technologies, having its office at No. B2, Mona Home, 2nd Main Road, Ashoknandavanam, Melpakkam, Avadi - 600077, represented by its authorised signatory Mrs. Priyadharshini A ("ACA").
Collectively	ABCDE and ACA are referred to individually as a "Party" and collectively as the "Parties".
Draft status	Revised draft prepared to place ACA on a safer commercial and legal footing. Parties should review and confirm before execution.

1. Purpose

1.1 The purpose of this MoU is to record the terms under which ACA shall source and coordinate qualified trainers for training assignments undertaken by ABCDE for its client institutions.

1.2 This MoU is intended to define ACA's limited coordination role. No obligation, warranty, commitment, penalty, or liability shall be implied against ACA unless expressly stated in this MoU or in a written assignment confirmation signed or confirmed by the authorised representatives of both Parties.

2. Term and Renewal

2.1 This MoU shall remain valid for a period of three (3) years from the date of execution, unless terminated earlier in accordance with this MoU.

2.2 The MoU may be renewed only by mutual written consent of the Parties before expiry or by a fresh written agreement.

3. Scope of ACA's Role

3.1 ACA's role is limited to sourcing, proposing, confirming, and coordinating trainers for assignments approved by ABCDE in writing.

3.2 ABCDE shall be responsible for client acquisition, client relationship management, programme design approval, venue readiness, institutional coordination, student coordination, certificates, client approvals, and overall project execution, unless otherwise agreed in writing.

3.3 ACA shall not be responsible for client-side commitments, institutional approvals, venue arrangements, student attendance, programme cancellations by the client or ABCDE, certificate issuance, assessment outcomes, client payment collection, or deliverables outside the agreed trainer-sourcing role.

3.4 ACA shall not be deemed to have accepted any additional staffing, training delivery, reporting, compliance, replacement, documentation, or administrative obligation unless the same is expressly agreed in the written assignment confirmation.

4. Assignment Confirmation and Commercial Terms

4.1 Each training assignment shall be confirmed in writing by email, work order, purchase order, or annexure before ACA is required to block trainer dates, incur costs, or deploy any trainer.

4.2 The written confirmation shall specify, as applicable, the client institution, training topic, dates, venue, trainer profile, expected duration, trainer fee, payment terms, travel and accommodation responsibility, cancellation terms, reporting instructions, equipment requirements, and any special requirements.

4.3 No oral instruction shall create a payment, deployment, discount, waiver, replacement, or additional service obligation unless confirmed in writing by the authorised representatives of both Parties.

4.4 ACA may decline to block trainer dates or incur costs until the assignment confirmation and commercial terms are complete and clear.

5. Trainer Representation and Client Communication

5.1 During an authorised assignment, trainers coordinated by ACA shall represent ABCDE only for the limited operational purpose of conducting the agreed training assignment.

5.2 Trainers shall not have authority to make commercial, contractual, pricing, refund, discount, certificate, employment, or relationship-level commitments on behalf of ACA or ABCDE.

5.3 All commercial, contractual, and relationship-level communication with client institutions shall be handled by ABCDE unless ABCDE expressly authorises ACA or the trainer in writing.

5.4 Operational communication by trainers at the venue, including coordination with faculty, coordinators, students, and local representatives, shall be permitted to the extent reasonably required for conducting the training programme.

6. Client Interaction, Non-Circumvention and Prior Relationships

6.1 ACA and trainers introduced through ACA shall not directly negotiate, accept, or solicit the same specific training opportunity from a client institution first introduced to them by ABCDE, except with ABCDE's prior written consent.

6.2 The restriction in this clause shall apply only to the specific client institution and specific training opportunity identified by ABCDE in writing at or before assignment confirmation, and only during the term of this MoU and for one (1) year after expiry or termination.

6.3 This restriction shall not apply to clients or institutions with whom ACA or the relevant trainer had a prior independent relationship, who approach ACA or the trainer independently without use of ABCDE's confidential information, or to unrelated services, open-market opportunities, public tenders, general enquiries, or independently developed business opportunities.

6.4 For clarity, any client institution claimed to have been first introduced by ABCDE shall be identified by ABCDE in writing, including by email, work order, annexure, or other written assignment confirmation, at or before the relevant assignment confirmation. In the absence of such written identification, the Parties shall not treat the client as a ABCDE-introduced client for the purposes of this Clause 6, unless introduction is otherwise clearly evidenced in writing.

6.5 Nothing in this clause shall restrict ACA from carrying on its lawful business, offering trainer sourcing or staffing services to the market generally, or working with institutions that are not covered by the specific written restriction above.

7. Fees, Invoicing, Taxes and Payment

7.1 Commercial discussions for trainer fees and assignment charges shall take place only between ABCDE and ACA. ABCDE shall not be required to make direct payment to individual trainers engaged through ACA unless separately agreed in writing.

7.2 ACA shall raise a valid invoice after completion of the agreed assignment, after cancellation charges become payable, or as otherwise specified in the written assignment confirmation.

7.3 ABCDE shall make payment to ACA within twenty (20) days from receipt of a valid invoice, subject only to deductions required under applicable law, including TDS where applicable.

7.4 ABCDE's obligation to pay ACA shall not be dependent on receipt of payment, approval, reimbursement, or confirmation from ABCDE's client institution, unless ACA has expressly agreed to such dependency in the written assignment confirmation.

7.5 GST, if applicable, shall be charged in addition to the agreed fees and paid as per the invoice. The Parties shall be responsible for their respective tax compliances.

7.6 Any invoice dispute must be notified in writing within seven (7) days of invoice receipt, with specific reasons and supporting details. The undisputed portion shall be paid within the normal payment period.

7.7 If no written dispute is raised within seven (7) days, the invoice shall be treated as accepted for payment processing.

7.8 If any undisputed amount remains unpaid after the due date, ACA may suspend further trainer sourcing, trainer blocking, coordination, replacement support, and deployment until all overdue amounts are cleared. Overdue undisputed amounts shall carry interest at eighteen percent (18%) per annum or the maximum rate permitted by law, whichever is lower, from the due date until actual payment.

8. Travel, Accommodation and Logistics

8.1 Travel, accommodation, food, local transport, venue access, and official logistics for trainers shall be arranged by ABCDE unless otherwise agreed in writing for a specific assignment.

8.2 If ACA arranges travel, accommodation, or other logistics at ABCDE's request, ABCDE shall reimburse actual reasonable costs against supporting documents, unless a fixed reimbursement amount is agreed in writing.

8.3 ACA shall not be required to make non-refundable bookings or advance payments for logistics unless ABCDE has approved the booking in writing and either paid an advance or confirmed reimbursement responsibility in writing.

8.4 ABCDE shall provide timely reporting instructions, venue details, contact persons, programme schedules, access permissions, and equipment readiness information so that ACA can coordinate trainer reporting properly.

9. Trainer Coordination and Replacement

9.1 ACA shall coordinate with confirmed trainers from the time an assignment is confirmed until the trainer physically reports to the authorised representative of ABCDE or the client institution at the training venue.

9.2 ACA shall use commercially reasonable efforts to ensure that the trainer follows travel instructions, reporting time, and assignment requirements shared in writing by ABCDE before assignment confirmation or within a reasonable time thereafter.

9.3 If a trainer is unable to report, cancels, is materially delayed, or fails to reach the venue due to reasons within ACA's reasonable control, ACA shall promptly inform ABCDE and use commercially reasonable efforts to arrange a suitable replacement trainer.

9.4 ACA's obligation to use commercially reasonable efforts to arrange a replacement trainer shall be ABCDE's sole remedy for trainer unavailability, delay, or non-reporting, except where directly caused by ACA's fraud or wilful misconduct.

9.5 ACA shall not be liable for delays, cancellation, or non-reporting caused by force majeure, transport disruptions, illness, accident, client-side changes, late confirmation, non-availability of travel or accommodation, venue access issues, delayed payment, unclear instructions, or circumstances beyond ACA's reasonable control.

9.6 Once the trainer reports at the venue, on-campus coordination, food, accommodation where applicable, local logistics, programme execution, institutional coordination, crowd or student management, equipment readiness, and local safety arrangements shall be managed by ABCDE.

10. Trainer Standards and Code of Conduct

10.1 ACA shall endeavour to source trainers with suitable qualifications, experience, communication ability, and subject competence for the agreed assignment, based on the requirements shared by ABCDE in writing.

10.2 ABCDE shall provide any special code of conduct, campus rules, assessment format, dress code, reporting protocol, safety requirements, or client-specific requirements in writing before the assignment.

10.3 ACA shall communicate ABCDE's written code of conduct and assignment requirements to the confirmed trainer.

10.4 ACA shall not be liable for a trainer's independent act, omission, misconduct, statement, unauthorised promise, or behaviour after reporting at the venue, except to the extent directly caused by ACA's proven fraud, wilful misconduct, or gross negligence in sourcing or coordinating that trainer.

11. Performance Feedback and Replacement During Assignment

11.1 If ABCDE reasonably finds a trainer unsuitable due to misconduct, serious lack of competence, repeated non-compliance, or failure to conduct the agreed training, ABCDE may request replacement with written reasons and supporting details.

11.2 ACA shall use commercially reasonable efforts to provide a replacement, subject to availability, reasonable notice, travel feasibility, and timely confirmation of commercial terms.

11.3 No replacement obligation shall apply where the issue arises from unclear scope, change in training topic, inadequate venue or equipment, client-side disruption, student indiscipline, safety concerns, delayed payment, or requirements not shared with ACA before assignment confirmation.

11.4 Replacement support under this clause shall not amount to admission of fault by ACA or waiver of ACA's right to payment for completed or partially completed services.

12. Confidentiality

12.1 Each Party shall keep confidential all non-public client, student, pricing, business, training, commercial, and operational information received from the other Party or its client institutions.

12.2 Confidential information shall not be disclosed to any third party except to trainers, employees, consultants, or representatives who need to know it for the assignment and are informed of confidentiality obligations.

12.3 Confidentiality obligations shall not apply to information that is public, already known without breach, independently developed, received lawfully from a third party, or required to be disclosed by law or lawful authority.

12.4 This clause shall survive expiry or termination of this MoU for three (3) years.

13. Intellectual Property and Training Materials

13.1 Training materials, course content, templates, assessments, client data, and documents provided by ABCDE shall remain the property of ABCDE or its client, as applicable.

13.2 Pre-existing materials, tools, teaching methods, templates, know-how, examples, and content brought by ACA or its trainers shall remain the property of ACA or the relevant trainer, unless specifically assigned in writing.

13.3 Any custom material ownership, usage rights, licensing, or handover obligation shall be agreed in writing for the relevant assignment before development begins.

13.4 No assignment or transfer of ACA's or any trainer's intellectual property shall be implied from this MoU, assignment delivery, invoice payment, or sharing of materials for training purposes.

14. Data Protection and Student Information

14.1 If any student, employee, or client data is shared for an assignment, each Party shall use such data only for the relevant assignment and shall take reasonable steps to protect it from unauthorised disclosure or misuse.

14.2 ABCDE shall be responsible for ensuring that any personal data shared with ACA or trainers is collected and shared with proper authority, notice, consent, client permission, or other lawful basis, as applicable.

14.3 ACA shall process such data only for the assignment and shall not be responsible for the accuracy, legality, completeness, or sufficiency of data supplied by ABCDE or its client institution.

14.4 ACA shall instruct trainers not to copy, publish, sell, or misuse student or client data received during assignments.

14.5 Each Party shall promptly inform the other Party if it becomes aware of unauthorised disclosure or misuse of personal data relating to an assignment, and the Parties shall reasonably cooperate to mitigate the issue according to their respective roles.

15. Compliance and Relationship of Parties

15.1 Each Party shall comply with applicable Indian laws, tax obligations, and business compliances relevant to its role under this MoU.

15.2 Nothing in this MoU creates an employer-employee relationship, partnership, agency, franchise, or joint venture between the Parties, or between ABCDE and trainers coordinated by ACA, unless separately agreed in writing.

15.3 ACA shall remain responsible for its own commercial arrangements with trainers. ABCDE shall remain responsible for its own arrangements, representations, commitments, and collections from clients.

15.4 ABCDE shall not represent to any client institution that ACA or any trainer is ABCDE's employee, partner, or authorised commercial representative.

16. Cancellation and Rescheduling

16.1 If a confirmed assignment is cancelled or rescheduled by ABCDE or its client after trainer confirmation, ABCDE shall promptly notify ACA in writing.

16.2 The Parties may agree assignment-wise cancellation charges in the written assignment confirmation. In the absence of a specific written arrangement, the default cancellation terms in Clause 16.3 shall apply.

16.3 If cancellation or rescheduling occurs after trainer confirmation, ABCDE shall pay ACA: (a) all non-refundable travel, accommodation, and logistics costs incurred or committed by ACA at ABCDE's request; (b) fifty percent (50%) of the agreed trainer fee if cancelled within seven (7) days before the assignment date; and (c) one hundred percent (100%) of the agreed trainer fee if cancelled within forty-eight (48) hours before the assignment date, after the trainer has commenced travel, or after the trainer has reported at the venue.

16.4 The amounts under this clause shall be payable whether or not ABCDE receives payment, approval, or reimbursement from its client institution.

16.5 If cancellation is caused by ACA's proven fraud or wilful misconduct, the cancellation charges under this clause shall not apply to the extent directly caused by such conduct.

17. Limitation of Liability

17.1 Except for fraud, wilful misconduct, and unpaid fees, each Party's aggregate liability under or relating to a particular assignment shall be limited to the fees actually paid or payable to ACA for that affected assignment.

17.2 For confidentiality breach or third-party intellectual property claims, each Party's aggregate liability shall be limited to two (2) times the fees actually paid or payable to ACA for the affected assignment, unless finally determined by a competent court to have arisen from fraud or wilful misconduct.

17.3 Neither Party shall be liable for indirect, consequential, special, punitive, exemplary, remote, or loss-of-profit damages arising out of this MoU.

17.4 This clause does not limit ABCDE's payment obligations for completed assignments, cancellation charges, or reimbursements expressly agreed in writing.

18. Indemnity

18.1 Each Party shall indemnify the other Party only against direct losses, claims, or penalties finally determined by a competent court or admitted in a written settlement approved by the indemnifying Party, to the extent arising from the indemnifying Party's own fraud, wilful misconduct, gross negligence, breach of confidentiality, or violation of applicable law.

18.2 ACA's indemnity shall not extend to claims arising from ABCDE's client commitments, programme design, venue arrangements, content or materials supplied by ABCDE or its client, institutional directions, student or crowd management, data supplied by ABCDE or its client, or matters outside ACA's agreed scope.

18.3 The indemnified Party shall promptly notify the indemnifying Party of the claim, provide reasonable cooperation, allow reasonable control of defence or settlement where legally possible, and take reasonable steps to mitigate losses.

18.4 No settlement or admission that creates liability for ACA shall be made without ACA's prior written consent.

19. Force Majeure

19.1 Neither Party shall be liable for delay or failure to perform obligations caused by events beyond its reasonable control, including natural calamities, strikes, bandh, transport disruption, illness, epidemic, government restrictions, venue closure, internet or power failure, civil disturbance, safety risk, or other events that materially affect performance.

19.2 The affected Party shall notify the other Party as soon as reasonably possible. Force majeure shall not excuse ABCDE's payment obligations for services already performed, costs already approved, or cancellation charges already accrued before the force majeure event.

20. Termination and Suspension

20.1 Either Party may terminate this MoU by giving fifteen (15) days' written notice to the other Party.

20.2 Either Party may terminate immediately for material breach if the breach is not capable of cure or is not cured within seven (7) days of written notice.

20.3 ACA may suspend services or decline further trainer sourcing, trainer blocking, coordination, replacement support, and deployment immediately if any undisputed invoice remains unpaid beyond the due date.

20.4 ACA may terminate this MoU with immediate effect if any undisputed non-payment continues for seven (7) days after written notice.

20.5 Termination shall not affect payment obligations, cancellation charges, reimbursement obligations, confidentiality obligations, accrued rights, completed assignments, ongoing assignments already confirmed unless mutually cancelled, or clauses intended to survive termination.

21. Governing Law and Dispute Resolution

21.1 This MoU shall be governed by and construed in accordance with the laws of India.

21.2 The Parties shall first attempt to resolve disputes through good-faith discussions between authorised representatives within fifteen (15) days of written notice of dispute.

21.3 If the dispute is not resolved amicably, the courts at Chennai, Tamil Nadu shall have exclusive jurisdiction, subject to applicable law.

21.4 Nothing in this clause shall prevent ACA from seeking recovery of undisputed unpaid invoices, cancellation charges, reimbursements, or other admitted amounts through any legally available summary or appropriate proceedings before the competent forum.

22. Notices

22.1 Any notice under this MoU shall be sent by email, courier, registered post, or hand delivery to the addresses or authorised email IDs last notified by the relevant Party.

22.2 Email notice shall be treated as received on the next business day after sending, unless the sender receives an automated delivery failure notice.

22.3 Each Party shall promptly notify the other Party of any change in authorised representative, address, or official email ID.

23. Entire Understanding and Amendments

23.1 This MoU, together with written assignment confirmations issued under it, records the entire understanding between the Parties for the subject matter stated here.

23.2 Any amendment, waiver, discount, additional obligation, or change to this MoU shall be valid only if recorded in writing and confirmed by authorised representatives of both Parties.

23.3 If there is any conflict between this MoU and an assignment confirmation, the assignment confirmation shall prevail only for that specific assignment and only to the extent expressly stated.

24. Signatures

The Parties have executed this MoU through their authorised representatives on the date first written above.

For Sanjay	For ACA Technologies
Name: Anil Designation: CEO Signature: Date: 2026-07-23 Place: Chennai	Name: Priyadharshini A Designation: Authorized Signatory Signature: Date: 2026-07-16 Place: Chennai, Tamil Nadu

Witnesses

Witness 1:

Name: SUDENVU8YSNV
Address: SGBSGBV SWRGSERGE EWTFGWSEG EWGEWSRGWS
Signature:

Witness 2:

Name: SGBESRGESG
Address: ETGWESG WSEGWSGHWE WEGWEGW WSEGWEGWE
Signature: